

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn**

Date: September 23, 2016

Deputy Clerk: Robert R. Keech
Court Reporter: Tracy Weir and Julie Thomas

Civil Action No. 14-cv-0778-REB-MEH

Parties:

UNITED STATES WELDING INC.,

Plaintiff,

v.

TECSYS INC.,

Defendant.

Counsel:

George Stephen Long

Marcus S. Harris

Kristin A. Lockwood

Peter Ordower

Christopher H. Toll

Benjamin N. Simler

COURTROOM MINUTES

Trial to Jury - Day Ten

8:18 a.m. Court in session.

Court calls case.

Outside the presence of the jury charging conference concludes.

8:28 a.m. Court in recess.

8:31 a.m. Court in session.

Outside the presence of the jury charging conference concludes.

8:33 a.m. Jury enters the courtroom.

Courtroom deputy tenders copies of jury instructions and verdict forms to jurors.

8:36 a.m. Court reads jury instructions to the jury.

9:36 a.m. Bench conference to discuss issue raised by Mr. Ordower as to jury instructions.

9:40 a.m. Bench conference concludes.

9:40 a.m. Court reads corrections to jury instructions to jury.

9:48 a.m. Court in recess.

10:09 a.m. Court in session.

Outside the presence of the jury to discuss use of a demonstrative exhibit.

10:11 a.m. Jury enters the courtroom.

Court's remarks to jury regarding corrected pages being placed in their sets of jury instructions during the recess.

10:12 a.m. Closing argument by plaintiff by Mr. Long.

11:03 a.m. Closing argument by defendant by Mr. Toll.

12:05 p.m. Rebuttal argument by plaintiff by Mr. Long.

12:16 p.m. Court security officers and courtroom deputy sworn.

12:18 p.m. Jury exits to commence deliberations.

Court's remarks to counsel regarding availability and that they shall return this afternoon, at 4:45 p.m.

12:20 p.m. Court in recess. Subject to call.

4:56 p.m. Court in session.

Court Reporter is Julie Thomas.

Outside the presence of the jury.

Court informs counsel that jury is requesting addition time for deliberations and will inform the Court of how much time shortly. No objection by counsel for either party.

5:00 p.m. Court in recess. Subject to call.

5:03 p.m. Court in session.

Court informs counsel that jury is requesting an addition thirty (30) minutes for deliberations and the Court will grant that request.

5:04 p.m. Court in recess. Subject to call.

5:23 p.m. Court in session.

Outside the presence of the jury.

Court informs counsel that jury has sent a note that they have reached unanimous verdicts.

5:25 p.m. Jury enters the courtroom.

Foreperson confirms that the jury has reached unanimous verdicts and delivers same to the Court via the Court Security Officer

5:26 p.m. Court reads the verdicts.

5:29 p.m. Court polls the jurors.

Jury is given its closing trial instructions, including the prohibition against contact from counsel and parties, given the thanks of the Court, and is discharged.

5:31 p.m. Jury excused.

Court's closing remarks to counsel.

ORDERED: Defendant shall file any motion for attorneys' fees and costs shall be filed no later than **Friday, October 14, 2016.**

ORDERED: Responses and replies shall be governed by the Local Rules of Practice.

5:34 p.m. Court in recess.

Trial concluded.

Total time in court: 3:54

**CLERK'S NOTE: EXHIBITS AND DEPOSITIONS RETURNED TO COUNSEL AT THE
CONCLUSION OF THE TRIAL.**